

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0006935-2024

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Marquis R. Gateward

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CASE INFORMATION

<u>Judge Assigned:</u> Kamau, Nicholas	<u>Date Filed:</u> 10/10/2024	<u>Initiation Date:</u> 10/10/2024
<u>OTN:</u> U 314779-3	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0018703-2024
<u>Initial Issuing Authority:</u> Lydia Y. Kirkland	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Burkitt, James	
<u>Complaint/Citation No.:</u> 2435048829-0018703	<u>Incident Number:</u> 2435048829	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0018703-2024	
District Control Number	2435048829	
Originating Document Number	2435048829-0018703	

STATUS INFORMATION

<u>Case Status:</u> Closed	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u> 09/24/2024
	05/27/2026	Completed	
	05/27/2026	Awaiting Disposition	
	06/17/2025	Sentenced/Penalty Imposed	
	06/17/2025	Awaiting Sentencing	
	03/12/2025	Awaiting Trial Readiness Conference	
	02/18/2025	Awaiting Scheduling Conference	
	10/22/2024	Awaiting Pre-Trial Conference	
	10/10/2024	Awaiting Filing of Information	
			<u>Complaint Date:</u> 09/25/2024

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	10/23/2024	11:00 am	1104	Trial Commissioner Cierra Adkins	Scheduled
Pre-Trial Conference	11/12/2024	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Pretrial Bring Back	12/17/2024	9:00 am	905	Judge Zachary C. Shaffer	Continued
Pretrial Bring Back	01/28/2025	9:00 am	905	Judge Zachary C. Shaffer	Continued
Pretrial Bring Back	02/18/2025	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Scheduling Conference	03/12/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Motions Hearing	05/12/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Trial Readiness Conference	06/12/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Trial Readiness Conference	06/13/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Jury Trial	06/17/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Status	05/11/2026	9:00 am	502	Judge Nicholas Kamau	Continued
Status	05/27/2026	9:00 am	502	Judge Nicholas Kamau	Scheduled

DEFENDANT INFORMATION

Date Of Birth: 04/01/1995 City/State/Zip: Philadelphia, PA 19141

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Probation Officer	Rastelli, Rita
Defendant	Gateward, Marquis R.

BAIL INFORMATION

Gateward, Marquis R.

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	10/10/2024	Monetary	Common Pleas	10.00%	\$200,000.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
5	6	F2	18 § 3124.1	Sexual Assault	07/28/2024	U 314779-3

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>

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Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	10/09/2024	Not Final
5 / Sexual Assault	Held for Court	F2 18 § 3124.1

Proceed to Court Defendant Was Not Present

Information Filed	10/15/2024	Not Final
5 / Sexual Assault	Proceed to Court	F2 18 § 3124.1

Guilty Plea - Negotiated Defendant Was Present

Jury Trial	06/17/2025	Not Final
5 / Sexual Assault	Guilty Plea - Negotiated	F2 18 § 3124.1
Kamau, Nicholas	06/17/2025	
Confinement	Min of 11.00 Months 15.00 Days	
	Max of 23.00 Months	
	11 1/2 - 23 months	

Credit to be calculated by the Phila. Prison System

Defendant paroled immediately.

Defendant sentenced to 11 ½ to 23 months of incarceration. Credit for time served Immediate parole, followed by 3 years reporting probation on count 5. Defendant to be supervised by the Sex Offender Unit. Tier III Offender. SOAB Waived. Subjected to random drug screens. Defendant to undergo mental health assesment and comply with all treatment reccomendations. Stay Away Order. Waive non mandatory court costs and fees.

Must register with the State Police and comply with all Tier III Megan's Law requirements.

Probation	Max of 3.00 Years	06/17/2025
	3 years	

Defendant sentenced to 11 ½ to 23 months of incarceration. Credit for time served Immediate parole, followed by 3 years reporting probation on count 5. Defendant to be supervised by the Sex Offender Unit. Tier III Offender. SOAB Waived. Subjected to random drug screens. Defendant to undergo mental health assesment and comply with all treatment reccomendations. Stay Away Order. Waive non mandatory court costs and fees.

To stay away from victim(s).

Defendant to be supervised under Sex Offender's Unit.

To submit to random drug screens.

To devote himself/herself to a specific occupation or employment.

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DISPOSITION SENTENCING/PENALTIES

Disposition

Case Event

Disposition Date

Final Disposition

Sequence/Description

Offense Disposition

Grade Section

Sentencing Judge

Sentence Date

Credit For Time Served

Sentence/Diversion Program Type

Incarceration/Diversionary Period

Start Date

Sentence Conditions

APPD- You must NOT possess firearms (including replica guns) or any other deadly weapons, possess, use, sell or distribute controlled substances of any kind.

You are not permitted to leave Philadelphia without approval of your Probation/Parole Officer

You must report to your Probation/Parole Officer as directed and permit your Officer to visit you at your home and place of employment.

Seek and maintain employment and obey all criminal laws and city ordinances.

Submit to Random Drug Screens

Notify your Officer within 15 days of any new arrest, change of address or change in employment.

You may be ordered to pay supervision fees, undergo a personal search and/or property search,

Attend a Life Skills Training Course and submit to a DNA sample if convicted of certain offenses.

Sex offender Conditions: If convicted of Megan's Law Offense, registration requirements, terms of frequency and duration are based on convictions as colloqued.

Sex Offenders Treatment - You MUST be evaluated and assessed for Sex Offender Specific Therapy by a Pennsylvania approved Sexual Offender Assessment Board Treatment Provider; Comply and complete an individualized treatment plan developed by the treatment provider, including polygraph testing. Unsuccessful discharge will result in a violation.

Minors - You CANNOT have contact or reside with minors or biological children without written approval from the court if offense involves a minor under 18 year of age. No employment or volunteering with any agency that provides care/custody of minors under 18 years of age or physically/mentally incapacitated persons. Cannot patronize any establishment or public/private space that provides activities, services or goods for minors without written approval from the court.

Search & Seizure - If your offense involves Child Pornography, you will not have any obscene material of any kind at your residence, employment or on electronic devices. Electronic devices will be monitored by the APPD including computers, cellphones, laptops and tablets for pornographic material as well as intermittent internet usage all at the cost of the defendant. Search of person and/or property including vehicles may be conducted by the APPD with seizure of any/all property including vehicles may be conducted by the APPD with seizure of any/all contraband deemed to be obscene including host devised and assumed property of the Philadelphia APPD in accordance with Act 96 42 PA.CS 9912.

Travel - The Court MUST grant permission to travel and said permission may be revoked at any time. Travel without court permission constitutes a violation which can result in being detained. Overnight travel requires judicial permission and thirty (30) day notice to APPD.

Victims - NO contact with victim including in-person, communication devices, third parties or intermediaries. You are not permitted within the vicinity of the victim's residency, place of employment, school or members of the victim's family or household. You are not permitted to damage or arrange any deliveries to the victim's residence/property, home, work or school.

DNA - Comply with submission of specimen to the State Crime Lab for DNA registration as applicable.

Proceed to Court (Disposition Vacated)

Defendant Was Not Present

Status

05/27/2026

Not Final

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DISPOSITION SENTENCING/PENALTIES

Disposition

Case Event

Sequence/Description

Sentencing Judge

Sentence/Diversion Program Type

Sentence Conditions

5 / Sexual Assault

Disposition Date

Offense Disposition

Sentence Date

Incarceration/Diversionary Period

Proceed to Court (Amended
Information)

Final Disposition

Grade Section

Credit For Time Served

Start Date

F2 18 § 3124.1

Dismissed - Abatement

Defendant Was Not Present

Status

5 / Sexual Assault

05/27/2026

Dismissed - Abatement

Final Disposition

F2 18 § 3124.1

COMMONWEALTH INFORMATION

Name:

Supreme Court No:

ATTORNEY INFORMATION

Name:

Adam Sequoyah Yee

Court Appointed

Supreme Court No:

328194

Rep. Status:

Active

Phone Number(s):

215-240-4078 (Phone)

Address:

1313 Race St 2nd Fl
Philadelphia, PA 19107

Representing: Gateward, Marquis R.

ENTRIES

Sequence Number

CP Filed Date

Document Date

Filed By

1

10/10/2024

Court of Common Pleas -
Philadelphia County

Held for Court

3

10/10/2024

Kirkland, Lydia Y.

Bail Set - Gateward, Marquis R.

1

10/15/2024

Krasner, Larry

Information Filed

3

10/22/2024

Court of Common Pleas -
Philadelphia County

Hearing Notice

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	11/12/2024		Shaffer, Zachary C.
Defense Request For Continuance Newly Retained or Appointed			
2	11/12/2024		Court of Common Pleas - Philadelphia County
Short Certificate Court Appointments 11/12/2024			
3	11/12/2024		Yee, Adam Sequoyah
Entry of Appearance			
4	11/12/2024		Court of Common Pleas - Philadelphia County
Appointment Notice			
3	11/22/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	12/17/2024		Shaffer, Zachary C.
Commonwealth Request For Continuance Discovery Incomplete			
5	12/17/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	01/28/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	01/28/2025		Shaffer, Zachary C.
Defense Request For Continuance For Further Investigation			
2	02/18/2025		Shaffer, Zachary C.
Order Granting Motion for Continuance			
5	02/18/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			

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1	03/12/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
5	03/12/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
8	03/12/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
10	03/12/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	05/12/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
1	06/12/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
4	06/13/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	06/13/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Short Certificate Philadelphia County Sheriff's Office 06/13/2025 Philadelphia Department of Prisons 06/13/2025			
6	06/13/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
1	06/17/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Short Certificate			

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<u>Service To</u>	<u>Service By</u>		
<u>Issue Date</u>	<u>Service Type</u>	<u>Status Date</u>	<u>Service Status</u>
Philadelphia County Sheriff's Office 06/17/2025			
2	06/17/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Short Certificate Philadelphia County Sheriff's Office 06/17/2025			
3	06/17/2025		Kamau, Nicholas
Guilty Plea - Negotiated			
4	06/17/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Order -- Trial Disposition			
5	06/17/2025		Kamau, Nicholas
Order - Sentence/Penalty Imposed			
7	06/17/2025		Court of Common Pleas - Philadelphia County
Penalty Assessed			
8	06/17/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Itemized Account of Fines, Costs, Fees, and Restitution Fines and Costs 06/17/2025			
9	06/17/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Release of Prisoner Philadelphia County Sheriff's Office 06/17/2025 Philadelphia Department of Prisons			

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<u>Service To</u>	<u>Service By</u>		
<u>Issue Date</u>	<u>Service Type</u>	<u>Status Date</u>	<u>Service Status</u>
06/17/2025			
1	06/18/2025		Court Appointment QAU
Order Granting Motion for Counsel Fees			
1	06/26/2025		Philadelphia County Office of Court Compliance
Payment Plan/Financial Information Submitted			
1	08/26/2025		Philadelphia County Office of Judicial Records
Entry of Civil Judgment			
3	04/21/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	05/11/2026		Kamau, Nicholas
Status Listing			
5	05/11/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	05/27/2026		Kamau, Nicholas
Proceed to Court (Disposition Vacated)			
2	05/27/2026		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Order -- Trial Disposition			
3	05/27/2026		Kamau, Nicholas
Dismissed - Abatement			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
4	05/27/2026		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Order -- Trial Disposition			

PAYMENT PLAN SUMMARY

<u>Payment Plan No</u>	<u>Payment Plan Freq.</u>	<u>Next Due Date</u>	<u>Active</u>	<u>Overdue Amt</u>
<u>Responsible Participant</u>			<u>Suspended</u>	<u>Next Due Amt</u>
	Monthly	07/25/2025	Yes	\$165.00
Gateward, Marquis R.			No	\$15.00
Payment Plan History: <u>Receipt Date</u> <u>Payor Name</u> <u>Participant Role</u> <u>Amount</u>				

CASE FINANCIAL INFORMATION

Last Payment Date:

Total of Last Payment:

Gateward, Marquis R.	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary</u>	<u>Balance</u>
Defendant				<u>Payments</u>	
Costs/Fees					
Booking Center Fee (Philadelphia)	\$175.00	\$0.00	\$0.00	\$0.00	\$175.00
CQS Fee Felony (Philadelphia)	\$100.00	\$0.00	\$0.00	\$0.00	\$100.00
Commonwealth Cost - HB627 (Act 167 of 1992)	\$25.90	\$0.00	\$0.00	\$0.00	\$25.90
Costs of Prosecution - CJEA	\$50.00	\$0.00	\$0.00	\$0.00	\$50.00
County Court Cost (Act 204 of 1976)	\$37.80	\$0.00	\$0.00	\$0.00	\$37.80
Crime Victim Services and Compensation (Act 77 of 1992)	\$60.00	\$0.00	\$0.00	\$0.00	\$60.00
Criminal Lab Fee (Philadelphia)	\$135.00	\$0.00	\$0.00	\$0.00	\$135.00
DNA Detection Fund (Act 185-2004)	\$250.00	\$0.00	\$0.00	\$0.00	\$250.00
Firearm Education and Training Fund	\$5.00	\$0.00	\$0.00	\$0.00	\$5.00
JCPS	\$21.25	\$0.00	\$0.00	\$0.00	\$21.25
State Court Costs (Act 204 of 1976)	\$17.30	\$0.00	\$0.00	\$0.00	\$17.30
OSP (Philadelphia) (Act 77 of 2022)	\$1,250.00	\$0.00	\$0.00	\$0.00	\$1,250.00
Civil Judgment/Lien (Philadelphia)	\$100.69	\$0.00	\$0.00	\$0.00	\$100.69
Costs/Fees Totals:	\$2,227.94	\$0.00	\$0.00	\$0.00	\$2,227.94
Grand Totals:	\$2,227.94	\$0.00	\$0.00	\$0.00	\$2,227.94

** - Indicates assessment is subrogated